

10. 9:00 AM CASE NUMBER: C26-00553
CASE NAME: KENNETH COLE VS. HYUNDAI MOTOR AMERICA
MOTION TO COMPEL ARBITRATION
FILED BY: HYUNDAI MOTOR AMERICA
TENTATIVE RULING:

The unopposed motion to compel arbitration is **GRANTED**. The Court will issue the proposed order after hearing submitted with the moving papers.

11. 9:00 AM CASE NUMBER: C26-01362
CASE NAME: JINLIANG LI VS. FIDELITY BROKERAGE SERVICES LLC
MOTION TO COMPEL ARBITRATION
FILED BY: FIDELITY BROKERAGE SERVICES LLC
TENTATIVE RULING:

The unopposed motion to compel arbitration is **GRANTED**. The Court will issue the proposed order after hearing submitted with the moving papers.

12. 9:00 AM CASE NUMBER: MSC08-02442
CASE NAME: PUTNAM LEASING COMPANY INC VS. RICARDO CHAVEZ
TO BE RELIEVED AS COUNSEL
FILED BY: PUTNAM LEASING COMPANY INC A CONNECTICUT CORPORATION
TENTATIVE RULING:

Herzlich & Blum, LLP, including attorneys Allan Herzlich and Jerome J. Blum ("Counsel") filed a Motion to be Relieved as Counsel on April 3, 2026 (the "Motion to be Relieved as Counsel"). The Motion to be Relieved as Counsel was set for hearing on August 10, 2026.

Background

Counsel seeks to be relieved as attorneys for "Putnam Leasing Company I, LLC." The Court notes that the name on the operative judgment is Putnam Leasing Company, Inc. The Court construes the motion as seeking to be relieved from representation from the plaintiff and judgment creditor in this case.

The supporting declaration filed by Counsel indicates that Counsel are both retiring and closing their practice. See Declaration filed April 3, 2026, ¶2. The client has been given notice of the Motion to be Relieved as Counsel. *Id.* at ¶3.

Analysis

The Motion to be Relieved as Counsel is unopposed.

Disposition

The Court finds and rules as follows:

1. The Motion to be Relieved as Counsel is GRANTED.
2. Counsel to submit a revised proposed form of order reflecting the proper name of the client entity under which this case was prosecuted.

13. 9:00 AM CASE NUMBER: MSC21-00646
CASE NAME: GONZALEZ VS KEADING FAMILY TRUST
TO DISMISS (CCP 583.310, 583.360)
FILED BY: NORTH AMERICAN TITLE INSURANCECOMPANY, A FOREIGN CORPORATION
TENTATIVE RULING:

Before the Court is a Code of Civil Procedure section 583.310 et seq. motion to dismiss for failure to bring this matter to trial within five years ("Motion"), filed by defendant North American Title Company ("NAT"). Joinders have been filed by defendants Hilja Keading (individually and as trustee of the Keading Family Trust), NRT West dba Coldwell Banker, and Margaret M. Lin. The joinders are approved.

For the reasons discussed below, the Court **GRANTS** North American Title Company's motion to dismiss and the joinders therein by the other defendants.

Legal Standard for CCP § 583.310 Motion to Dismiss

"An action shall be brought to trial within five years after the action is commenced against the defendant." (Code Civ. Proc., § 583.310.) In computing the time within which an action must be brought to trial, certain time periods are excluded, including when: (1) jurisdiction of the court was suspended; (2) prosecution or trial was stayed or enjoined; or (3) bringing the action to trial, for any other reason, was impossible, impracticable, or futile. (Code Civ. Proc. § 583.340.)

"Because the purpose of the dismissal statute is to prevent avoidable delay, section 583.340, subdivision (c) makes allowance for circumstances beyond the plaintiff's control, in which moving the case to trial is impracticable for all practical purposes." (*Seto v. Szeto* (2022) 86 Cal.App.5th 76, 85, citations omitted.) In determining whether tolling exceptions apply under subdivision (c), the "trial court must consider all the circumstances of the individual case, including the acts and conduct of the parties and the nature of the proceedings themselves." (*Id.* at 86, citation omitted.) The "trial court has discretion to determine whether that exception applies...." (*Bruns v. E-Commerce Exchange, Inc.* (2011) 51 Cal.4th 717, 731.)

The appropriate analysis focuses "on the 'justifiability' of the plaintiff's reason for not bringing the case to trial, rather than on the defendant's complicity in the delay." (*Brunzell Constr. Co. v. Wagner* (1970) 2 Cal.3d 545, 555; see also *Tejada v. Blas* (1987) 196 Cal.App.3d 1335, 1339-1340 [a critical factor in applying tolling exceptions to a given factual situation is whether the plaintiff exercised 'reasonable diligence' in prosecuting his or her case]; *Westinghouse Elec. Corp. v. Superior Court* (1983) 143 Cal.App.3d 95, 99 ["had plaintiff been the dilatory party, mere impracticability is not an excuse, since the impracticability arises from plaintiff's own fault"].) The plaintiff bears the burden of proving that the circumstances warrant application of the exception. (*Seto, supra*, 86 Cal.App.5th at 86.)

"Section 538.340 is construed liberally, consistent with the policy favoring trial on the merits." (*Tanguilig v. Neiman Marcus Group, Inc.* (2018) 22 Cal.App.5th 313, 323 citing *Dowling v. Farmers Ins. Exchange* (2012) 208 Cal.App.4th 685, 693.)